TOWNSHIP OF DOWNE
CUMBERLAND COUNTY, NEW JERSEY

ORDINANCE NO. 2026-04

AN ORDINANCE AMENDING AND SUPPLEMENTING THE CODE OF THE TOWNSHIP OF DOWNE TO INCLUDE AND DESIGNATE DATA CENTERS AS A NON-PERMITTED USE IN ALL ZONES WITHIN THE TOWNSHIP OF DOWNE

WHEREAS, the Township Committee of the Township of Downe (hereinafter "the Township") is aware of facilities that are commonly known as "data centers." Sometimes referred to as "internet data centers" or "cloud data centers," that are utilized to house computer systems associated components such as telecommunication and data storge systems, redundant or "backup" components, infrastructure for power supply, data communication connections, environmental and safety controls for building climate, equipment cooling, and for suppression, and security devices, systems, and installations, for the purpose of aggregating collective computing demands for cloud services, video streaming, blockchain and crypto mining, artificial intelligence and machine learning, virtual reality, and other data maintenance and transmission purposes; and

WHEREAS, the operation of large-scale data centers and similar facilities require significant infrastructure demands including but not limited to significant electrical power consumption, substantial cooling requirements necessitating excessive water consumption and that the operation of these facilities results in increased noise from the operation of large mechanical equipment, excessive heat generation and environmental impacts resulting from the operation of the equipment, while contributing limited local employment opportunities relative to the land consumption required for these facilities; and

WHEREAS, the Township is aware of growing public concerns about the potential environmental and socioeconomic impacts resulting from the operational needs and impacts of data centers, including but not limited to the increased demand for electricity and water consumption required to operate these facilities, that this demand can result in electrical grid overload and outages or service interruptions to other customers, that the energy demands has caused increased consumer energy prices, aquifer depletion, heat generation; interference with cellular and wireless communications; and disturbing, disruptive ambient noise, all of which is detrimental to the health, safety and welfare of the public and is detrimental to the longstanding residential, commercial and agricultural uses within the Township as well as the potential harm which may be caused to sensitive natural resources and environmental areas within the Township; and

WHEREAS, the Township further finds that data centers are frequently introduced into municipalities through zoning classifications such as warehouse, telecommunications facility, industrial processing

facility, or accessory use, despite having substantially different operational characteristics; and

WHEREAS, neither data centers as described above, nor any similar types of functionally equivalent but differently named facilities, have been recommended or otherwise designated as permitted or conditionally permitted uses or structures in the Township's Master Plan; nor are data centers or similar facilities listed as permitted or conditionally-permitted uses or structures in any of the Township's zoning districts nor are data centers or similar facilities included within any current category or classification of permitted or conditionally permitted uses or structures in and of the Township's zoning districts, such as, for example, "public utilities," "office buildings," "business offices," "retail businesses," "wholesale, warehouse, distribution, and transportation facilities," "wholesalers or distributors," "manufacturers," or "experimental, research or testing laboratories"; (nor are data centers or similar facilities contemplated as "essential services" within the Township's Institutional zoning district or as a compatible use within the Township's Conservation, Farmland Production, Open Space as those terms refer to facilities such as parking areas, restrooms, and water, sewage, and electric service infrastructure that may be needed in connection with the sorts of conservation areas, parks, playgrounds, playfields, and similar open space uses that are permitted in those zoning districts); and

WHEREAS, neither data centers as described above, nor any similar types of functionally equivalent but differently named facilities, have been recommended or otherwise designated as permitted or conditionally permitted uses or structures in the Township's Master Plan in and residential, business, commercial, or any of the specially designated zoning districts; and

WHEREAS, the Township has determined that such facilities, however named or referenced, are incompatible with the Township's land use planning objectives, its present and projected future infrastructure capacity, and the character of its community, such that the construction and operation of data centers within the Township would be detrimental to the public health, safety and welfare of the public; and

WHEREAS, the Committee is authorized to enact legislation which regulates land use pursuant to N.J.S.A. 40:55D-1 et. seq.,(the "Municipal Land Use Law") and by corresponding Resolution, refers the within legislation to the Planning Board for it to report its recommendation on the legislation and to make a finding as to consistency with the Master Plan; and

WHEREAS, the Committee have determined that in order to preserve and protect the public health, safety and welfare, including the demands upon the Township's infrastructure to ensure that a consistent and high level of service is able to continue to be provided to existing residential, commercial and agricultural properties within the Township, it is appropriate to enact legislation for this purpose.

NOW THEREFORE BE IT ORDAINED that the Committee enacts the following legislation amending the Township Code.

SECTION 1: PURPOSE AND FINDINGS

The Committee finds that:

1. Large-scale data centers and similar facilities generate significant infrastructure demands including but not limited to:
    - High electrical consumption;
    - Substantial cooling requirements;
    - Increased noise from mechanical equipment;
    - Heat generation and environmental impacts; and
    - Limited employment relative to land consumption

2. Data centers are incompatible with the Township's land use planning objectives, infrastructure capacity, and community character.

3. The Township further finds that data centers are frequently introduced into municipalities through zoning classifications such as warehouse, telecommunication facility, industrial processing facility, or accessory use, despite having substantially different operational characteristics.

4. The Committee therefore determines that the construction and operation of data centers within the Township of Downe would be detrimental to the public health, safety, and welfare.

SEVERABILITY:
If any section, paragraph, subsection, clause or provision of this Ordinance shall be adjudged invalid by a court of competent jurisdiction, such adjudication shall apply only to the section, paragraph subsection, clause or provision so adjudged, and the remainder of the Ordinance shall be deemed valid and shall remain in full force and effect.

EFFECTIVE DATE:
The Ordinance shall take effect upon final passage and publication as required by law.

NOW THEREFORE, BE IT FURTHER ORDAINED that the Municipal Clerk is directed to give notice of this Ordinance pursuant to the Municipal Land Use Law to the Clerks of all municipalities adjoining the Township and to the Cumberland County Planning Board at least ten (10) days prior to the date scheduled for the public hearing on the adoption of this Ordinance. A corresponding Resolution is being adopted referring this Ordinance to the Township Planning Board for its review, comment, and a finding of consistency with the Master Plan pursuant to the Municipal Land Use Law.

ADOPTED at a regular meeting of the Township Committee of the Township of Downe held on the 13th day of July, 2026, at 6:30 P.M.

ATTEST:

Nadine E. Lockley, Municipal Clerk

Michael L. Rothman, Mayor

STATE OF NEW JERSEY :

: ss

COUNTY OF CUMBERLAND :

Please take notice that the above Ordinance was adopted after a Public Hearing at a meeting of the Downe Township Committee on the 17th day of August, 2026 at the Downe Township Municipal Building in Newport, New Jersey.

ATTEST

Nadine E. Lockley, Municipal Clerk

TOWNSHIP OF DOWNE
CUMBERLAND COUNTY, NEW JERSEY
RECORD FOR ORDINANCE #2026-04

Introduce Ordinance on First Reading
MOTION: CAMPBELL
SECOND: BYRNE
Introduce ordinance/ First Reading Date: JULY 13, 2026
Ordinance Published: JULY 14, 2026
Ordinance Posted: JULY 14, 2026
Public Hearing/ Second Reading Date: AUGUST 17, 2026

Roll Call	YES	NO	ABSTAIN	ABSENT
Jordan, L.	X			
Byrne, S.	X			
Rothman, M.	X			
Bart, E.	X			
Campbell, R.	X			

Adoption of Ordinance
Motion:
Second:

Roll Call	YES	NO	ABSTAIN	ABSENT
Jordan, L.				
Byrne, S.				
Rothman, M.				
Bart, E.				
Campbell, R.				

Final Adoption Date:
Notice of Final Passage Published:
Notice of Final Passage Posted:

July 13, 2026
Date

Nadine Lockley
Nadine Lockley, Municipal Clerk